



Health Insurance (Share by Default) Rules 2025

I, Mark Butler, Minister for Health and Ageing, make the following rules.

Dated 09 December 2025

Mark Butler
Minister for Health and Ageing

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Part 1—Preliminary

1 Name

This instrument is the *Health Insurance (Share by Default) Rules 2025*.

2 Commencement

- (1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this instrument	1 July 2026.	1 July 2026

Note: This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.

- (2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

3 Authority

This instrument is made under the *Health Insurance Act 1973*.

4 Definitions

Note: A number of expressions used in this instrument are defined in the Act, including the following:

- (a) approved pathology practitioner;
- (b) My Health Record system;
- (c) pathologist-determinable service;
- (d) pathology service;
- (e) R-type diagnostic imaging service.

In this instrument:

Act means the *Health Insurance Act 1973*.

radiologist means a medical practitioner recognised as a specialist in diagnostic radiology:

- (a) under subsection 3D(1) of the Act; or
- (b) by a determination under paragraph 3DB(4)(a) or subsection 3E(1) of the Act that is in effect.

Part 2—Sharing health information by default

Division 1—Diagnostic imaging services

5 Diagnostic imaging services—specified professional services and persons

- (1) For the purposes of subsection 19AD(1) of the Act, this section specifies professional services rendered by or on behalf of persons specified for the service.
- (2) The specified services and persons are:
 - (a) an R-type diagnostic imaging service referred to in an item of the table in Part 2 of Schedule 1 to the *Health Insurance (Diagnostic Imaging Services Table) Regulations (No. 2) 2020* that is rendered by or on behalf of a radiologist; and
 - (b) a medical service referred to in an item of the table in Part 4 of Schedule 1 to the *Health Insurance (General Medical Services Table) Regulations 2021* that is rendered by or on behalf of a radiologist; and
 - (c) a health service that:
 - (i) under a determination in force under subsection 3C(1) of the Act is treated as if it were an item in a table mentioned in paragraph (a) or (b) of this subsection related to the health service; and
 - (ii) is rendered by or on behalf of a radiologist.

6 Diagnostic imaging services—information to be shared with the My Health Record system

- (1) For the purposes of subsection 19AD(1) of the Act, the specified information for a professional service specified in section 5 of this instrument is information that is included in a report or other document that is:
 - (a) created in respect of that professional service; and
 - (b) authorised by the radiologist who rendered the service, or on whose behalf the service was rendered.

Note: The information is required to be shared with the My Health Record system for medicare benefit to be payable for the service, unless an exception applies.

- (2) Subsection (1) does not apply to images.

7 Diagnostic imaging services—period for sharing information with the My Health Record system

- (1) For the purposes of subsection 19AD(1) of the Act, this section specifies the period within which information specified in section 6 of this instrument for a professional service must be shared with the My Health Record system.
- (2) The specified period is the period of 24 hours beginning at the time the information is first provided to:
 - (a) the practitioner who requested the provision of the professional service; or

- (b) if there was no such request—the practitioner who is treating the person to whom the information relates.

Division 2—Pathology services

8 Pathology services—specified professional services and persons

- (1) For the purposes of subsection 19AD(1) of the Act, this section specifies professional services rendered by or on behalf of persons specified for the service.
- (2) The specified services and persons are:
 - (a) a pathology service referred to in an item of the table in Part 2 of Schedule 1 to the *Health Insurance (Pathology Services Table) Regulations 2020* rendered by or on behalf of an approved pathology practitioner; and
 - (b) a health service that:
 - (i) under a determination in force under subsection 3C(1) of the Act is treated as if it were an item in the table mentioned in paragraph (a) of this subsection related to the health service; and
 - (ii) is rendered by or on behalf of an approved pathology practitioner; and
 - (c) a pathologist-determinable service rendered by or on behalf of an approved pathology practitioner.

9 Pathology services—information to be shared with the My Health Record system

For the purposes of subsection 19AD(1) of the Act, the specified information for a professional service specified in section 8 of this instrument is information that is included in a report or other document that is:

- (a) created in respect of that professional service; and
- (b) authorised by the approved pathology practitioner who rendered the service, or on whose behalf the service was rendered.

Note: The information is required to be shared with the My Health Record system for medicare benefit to be payable for the service, unless an exception applies.

10 Pathology services—period for sharing information with the My Health Record system

- (1) For the purposes of subsection 19AD(1) of the Act, this section specifies the period within which information specified in section 9 of this instrument for a professional service must be shared with the My Health Record system.
- (2) The specified period is the period of 24 hours beginning at the time the information is first provided to:
 - (a) the practitioner who requested the provision of the professional service; or
 - (b) if there was no such request—the practitioner who is treating the person to whom the information relates.